

CHAPTER 03

ISLAMIC DEMOCRATIC STATE



MULTIPLE CHOICE QUESTIONS

1. The Objective Resolution was approved by the Constitutional Assembly in _____.
2. Pakistan was recognized as a republic in _____.
3. The first Constitution of Pakistan was enforced in _____.
4. The second Constitution was implemented in _____.
5. The third Constitution was enforced in _____.
6. The Objective Resolution was moved by _____.
7. East Pakistan was separated in _____.

SHORT ANSWERS

Constitution of 1956 – Key Features

1. **Islamic Republic:** Pakistan was officially declared an Islamic Republic, making it the first constitution to incorporate Islam as a state ideology.
2. **Parliamentary System:** A parliamentary form of government was adopted where the Prime Minister was the head of government and responsible to the National Assembly.
3. **Unicameral Legislature:** The Parliament consisted of a single house known as the National Assembly, with equal representation from East and West Pakistan.
4. **President as Head of State:** The President was the ceremonial head of state, elected for a 5-year term by the National Assembly.
5. **Fundamental Rights:** Citizens were granted fundamental rights including freedom of speech, religion, and protection of property.
6. **National Language:** Urdu was declared the national language, with Bengali given the status of a provincial language.

Constitution of 1962 – Key Features

1. **Presidential System:** Introduced a presidential form of government, concentrating executive power in the hands of the President.
2. **No Prime Minister:** The position of Prime Minister was abolished; all executive authority rested with the President.
3. **Basic Democracies System:** A system of indirect elections was introduced where people elected local bodies, who in turn elected the President and members of the National Assembly.
4. **Unicameral Legislature:** The legislative body consisted of only one house – the National Assembly.
5. **Islamic Ideology Council:** The Council of Islamic Ideology was established to advise on laws in accordance with Islamic teachings.
6. **Republic Status Initially:** Pakistan was declared simply a "Republic" at first, but later the name Islamic Republic of Pakistan was restored in 1963.

Constitution of 1973 – Key Features

1. **Islamic Republic Reaffirmed:** The Constitution once again declared Pakistan an Islamic Republic with Islam as the state religion.
2. **Parliamentary System Restored:** Executive powers were transferred to the Prime Minister, who was made the real head of government.
3. **Bicameral Legislature:** A two-house Parliament was introduced, consisting of the National Assembly (lower house) and the Senate (upper house), ensuring equal representation for provinces.

- 4. Eligibility Criteria:** Only a Muslim could be elected as President or Prime Minister, reflecting the Islamic identity of the country.
- 5. Fundamental Rights and Judiciary:** The Constitution guaranteed basic human rights and ensured the independence of the judiciary.
- 6. Urdu as National Language:** Urdu was reaffirmed as the national language, but provinces could promote their regional languages.

What are the Islamic Provisions of constitution of 1973?

Islam as State Religion

- Islam was declared the official religion of Pakistan, reinforcing the country's Islamic identity.

Only a Muslim Can Be President and Prime Minister

- It was made mandatory that both the President and Prime Minister must be Muslims.

No Law Against the Teachings of Islam

- The Constitution stated that no law shall be enacted which is repugnant to the Quran and Sunnah, and existing laws must be brought into conformity with Islamic teachings.

Promotion of Islamic Way of Life

- The state was tasked with promoting an Islamic way of life by encouraging the observance of Islamic moral standards and values.

Establishment of Islamic Institutions

- Institutions like the Council of Islamic Ideology (CII) and Federal Shariat Court were established to ensure that laws conform to Islamic principles.

Teaching of Quran and Islamiyat

- The Constitution made it mandatory to teach the Quran and Islamiyat in schools, especially to Muslim students, to promote religious knowledge.

Zakat and Ushr System

- Provisions were made for the introduction of Islamic economic practices, such as the collection of Zakat and Ushr.

Definition of a Muslim in the 1973 Constitution of Pakistan

According to Article 260 (3)(a) of the Constitution of Pakistan 1973, the definition of a Muslim is as follows:

"A person who believes in the oneness of Almighty Allah, in the absolute and unqualified finality of the Prophethood of Muhammad (Peace Be Upon Him), and does not believe in or recognize as a prophet or religious reformer any person who claimed or claims to be a prophet, in any sense of the word or of any description whatsoever, after Muhammad (PBUH)."

What were the major factors for Fall of East Pakistan?

Introduction:

Pakistan emerged as an independent state on 14th August 1947, comprising two geographically separated regions: East Pakistan (formerly East Bengal) and West Pakistan. Although united by religion, both regions differed in language, culture, economy, and political ideology. These differences intensified over time, leading to the tragic separation of East Pakistan in December 1971, and the creation of the new state of Bangladesh.

Causes of the Fall of East Pakistan**i) Geographical Separation:**

One of the most critical weaknesses of Pakistan's initial structure was the 1,600 km wide Indian territory separating East and West Pakistan. This division created administrative challenges, delayed communication, and made East Pakistan feel isolated and neglected.

ii) Cultural and Social Differences:

East Pakistan was primarily Bengali-speaking, while West Pakistan had a mix of Punjabi, Sindhi, Pashtun, Balochi, and Urdu-speaking populations. The social and cultural norms of the Bengalis were different from those in the western wing. This lack of cultural integration created identity issues and misunderstandings between the two parts of the country.

iii) Language Controversy (1948–1952):

Soon after independence, the government declared Urdu as the national language, ignoring the fact that the majority population of East Pakistan spoke Bengali. This led to strong protests, particularly the Language Movement of 1952, during which several students in Dhaka were martyred on 21st February 1952—a day now commemorated internationally as International Mother Language Day.

iv) Economic Disparity:

Although East Pakistan generated a significant portion of Pakistan's export revenue—especially through jute production—it remained economically underdeveloped. Most development funds, industrial projects, and foreign aid were directed towards West Pakistan, leading to a growing sense of economic injustice in the East.

v) Political Deprivation and 1970 Elections:

The people of East Pakistan were continuously denied political power. In the general elections of 1970, the Awami League, led by Sheikh Mujibur Rahman, won a clear majority (160 out of 300 National Assembly seats). However, the central government in West Pakistan, under President General Yahya Khan, refused to transfer power, leading to political deadlock and unrest.

vi) Military Crackdown (Operation Searchlight):

After the elections of 1970 law and order situation became very critical in the East Pakistan. No one tried to find out the political solution of the problem.

vii) Indian Intervention and War of 1971:

Taking advantage of the internal unrest, India supported the Mukti Bahini (Bengali guerrilla fighters) and launched a full-scale military attack on East Pakistan on December 3, 1971. After a short war, the Pakistan Army in East Pakistan surrendered on December 16, 1971, in Dhaka. Over 90,000 Pakistani soldiers were taken as prisoners of war, and Bangladesh was officially declared an independent country.

Conclusion:

The fall of East Pakistan was not a sudden event, but the result of years of political injustice, economic exploitation, cultural misunderstandings, and lack of constitutional solutions. The absence of wise, inclusive leadership and the failure to respect democratic principles led to Pakistan's tragic disintegration in 1971. This event taught important lessons about the need for national unity, respect for diversity, and democratic governance.

What do you know about Objectives Resolution (1949)?**Introduction:**

The Objectives Resolution holds a central place in the constitutional and ideological history of Pakistan. It was passed by the first Constituent Assembly of Pakistan on 12th March 1949 under the leadership of Prime Minister Liaquat Ali Khan. The resolution served as a guiding principle for all future constitutions and played a critical role in defining the ideological foundation of Pakistan.

It not only reflected the Islamic character of the state but also incorporated the modern principles of democracy and fundamental rights. The Objectives Resolution was eventually made a permanent part of the Constitution of 1973 through the Eighth Amendment in 1985. It continues to serve as the ideological preamble to Pakistan's constitution.

Historical Background:

After gaining independence in 1947, Pakistan faced the immense challenge of framing its own constitution. The Objectives Resolution was the first major step towards this goal. It was introduced in the Constituent Assembly on 7th March 1949 and was debated extensively by members from both the government and the opposition before being adopted on 12th March 1949.

Main Features of the Objectives Resolution:**1. Sovereignty of Allah:**

The resolution begins by declaring that sovereignty over the entire universe belongs to Almighty Allah alone, and the authority to be exercised by the people of Pakistan is a sacred trust, delegated to them by Allah.

2. Delegation of Authority:

The state's authority is to be exercised by the elected representatives of the people, within the limits prescribed by Allah.

3. Constitutional Framework:

The future constitution of Pakistan shall be framed by the elected Constituent Assembly, laying down the structure of governance and the rule of law.

4. Democratic Governance:

The state shall exercise its powers and authority through elected representatives, ensuring democracy, equality, freedom, and social justice in accordance with the teachings of Islam.

5. Islamic Ideology:

Muslims of Pakistan shall be enabled to order their lives in accordance with the Quran and Sunnah, which ensures the preservation of the Islamic identity of the state.

6. Rights of Minorities:

The rights of religious minorities are explicitly protected, allowing them the freedom to practice their religion and culture without interference.

7. Federal System:

Pakistan will have a federal form of government, with maximum autonomy granted to the federating units, promoting unity in diversity.

8. Fundamental Rights:

Every citizen shall be guaranteed equality of status and opportunity, and protection of civil liberties including:

- Freedom of thought, expression, belief, faith, worship, and association
- Social, economic, and political justice

These rights are subject to the law and public morality.

9. Protection of Marginalized Communities:

It will be the state's responsibility to safeguard the rights of minorities, backward and oppressed classes, ensuring their full participation in national life.

10. Judicial Independence:

The independence of the judiciary shall be fully secured to maintain justice and uphold the rule of law.

11. Territorial Integrity and Sovereignty:

The resolution emphasizes the sovereignty and territorial integrity of Pakistan, ensuring its defense and national security.

12. International Peace and Development:

Pakistan shall strive to attain an honorable place in the community of nations and contribute positively towards world peace, progress, and the happiness of humanity.